BUTLER | SNOW

August 13, 2025

Via email

Town of Nederland, Colorado
45 West First Street
P.O. Box 396
Nederland, CO 80466

Attention: Jennifer Madsen, Town Attorney

Re: Enterprise Revenue Bonds

Dear Ms. Madsen:

We are pleased to confirm our engagement as disclosure counsel to the Town of Nederland (the "Town"). This letter sets forth the role we propose to serve and the responsibilities we propose to assume as disclosure counsel to the Town in connection with the issuance of the above captioned bonds (the "Bonds").

Personnel. Matt Touchard will be principally responsible for the work performed by Butler Snow LLP on your behalf and he will report to and take direction from Jennifer Madsen, Town Attorney. Where appropriate, certain tasks may be performed by other attorneys or paralegals. At all times, however, Matt Touchard will coordinate, all work completed for the Town.

Scope of Services. We are being retained by you to act as disclosure counsel to the Town in connection with the Official Statement for the Bonds (the "Official Statement"). As such, we will provide advice to the Town on the applicable legal standards to be used in preparing the Official Statement and meeting the Town's disclosure responsibilities. At the conclusion of the transaction we will deliver a letter to you stating, substantially, that we have assisted the Town in the preparation of the Official Statement, and that in the course of such assistance, nothing has come to the attention of the attorneys in our firm rendering legal services in connection with our representation which leads us to believe that the Official Statement, as of its date (except for the financial statements, other statistical data and statements of trends and forecasts, and information concerning The Depository Trust Company and its procedures contained in the Official Statement and its Appendices, as to which we express no view), contains any untrue statement of material fact or omits to state any material fact necessary to make the statements in the Official Statement, in light of the circumstances under which they were made, not misleading.

It is our understanding that Kline Alvarado Veio P.C. has been retained by the Town to act as bond counsel with respect to this transaction. Butler Snow LLP has no responsibility for the preparation of the transactional documents related to this issue (except in assisting the Town with the preparation of the Official Statement as described above) or delivering an opinion as to the validity of the Bonds or the exclusion of interest on the Bonds from gross income for federal or state income tax purposes.

1801 California Street
Suite 5100
Denver, Colorado 80202

MATTHEW S. TOUCHARD
[redacted]

[redacted]
www.butlersnow.com

In delivering our letter, we will rely upon the certified proceedings and other certifications of public officials and other persons furnished to us without undertaking to verify the same by independent investigation. Our letter will be addressed to the Town and will be executed and delivered by us in written form on the date the Bonds are exchanged for their purchase price (the "Closing"). The letter will be based on facts and law existing as of their date.

Our services as disclosure counsel are limited to those contracted for explicitly herein; the Town's execution of this letter constitutes an acknowledgment of those limitations. Specifically, but without implied limitation, our responsibilities do not include any representation by Butler Snow LLP in connection with any IRS audit, SEC enforcement action, or any litigation involving the Town or the Bonds, or any other matter. Neither do we assume responsibility for the preparation of any collateral documents (e.g., environmental impact statements) which are to be filed with any state, federal or other regulatory agency. Nor do our services include financial advice (including advice about the structure of the Bonds) or advice on the investment of funds related to the Bond issue. If such services are requested of us, we suggest that we discuss the nature and extent of those services and an estimate of our fee at the time of the request.

Attorney-Client Relationship. In performing our services as disclosure counsel, the Town will be our client and an attorney-client relationship will exist between us. We will represent the interests of the Town rather than its Board of Trustees, its individual members, or the Town's employees. We assume that other parties to the transaction will retain such counsel as they deem necessary and appropriate to represent their interests in this transaction.

Conflicts of Interest. Our firm sometimes represents, in other unrelated transactions, certain of the financial institutions that may be involved in this Bond transaction, such as underwriters, credit enhancers, and banks that act as paying agents or trustees. We do not believe that any of these representations will materially limit or adversely affect our ability to represent the Town in connection with the Bonds, even though such representations may be characterized as adverse under the Colorado Rules of Professional Conduct (the "Rules"). In any event, during the term of our engagement hereunder, we will not accept a representation of any of these parties in any matter in which the Town is an adverse party. However, pursuant to the Rules, we do ask that you consent to our representation of such parties in transactions that do not directly or indirectly involve the Town. Your execution of this letter will signify the Town's prospective consent to such adverse representations in matters unrelated to the Bonds while we are serving as disclosure counsel hereunder.

Fee Arrangement. Based upon: (i) our current understanding of the terms, structure, size and schedule of the financing, (ii) the duties we will undertake pursuant to this letter, (iii) the time we anticipate devoting to the financing, and (iv) the responsibilities we assume, we estimate that our fee for this engagement will be $100,000. We will provide a more precise fixed fee when we are closer to the Closing date.

Our fees are usually paid at Closing out of proceeds of the Bonds. We customarily do not submit any statement until the Closing, unless there is a substantial delay in completing the financing. We understand and agree that our fees will be paid at Closing out of proceeds. In addition, this letter authorizes us to incur expenses and make disbursements on behalf of the Town, which we will include in our invoice. Disbursement expenses will include such items as travel costs, photocopying, deliveries and other out-of-pocket costs. Attached as Exhibit A is our billing policy.

Document Retention. At or within a reasonable period after Closing, we will review the file to determine what materials should be retained as a record of our representation and those that are no longer needed. We will provide you with a copy of the customary transcript of documents after Closing and will return any original documents obtained from you (if a copy is not included in the transcript). Our document retention policy is attached hereto as Exhibit B.

Termination of Engagement. Upon delivery of our letter, our responsibilities as disclosure counsel will terminate with respect to the Bonds, and our representation of the Town and the attorney-client relationship created by this engagement letter will be concluded. Should the Town seek the advice of disclosure counsel on a post-closing matter or seek other, additional legal services, we would be happy to discuss the nature and extent of our separate engagement at that time.

Approval. If the foregoing terms of this engagement are acceptable to you, please so indicate by returning a copy of this letter signed by the officer so authorized, keeping a copy for your files.

We are pleased to have the opportunity to serve as your disclosure counsel and look forward to a mutually satisfactory and beneficial relationship. If at any time you have questions concerning our work or our fees, we hope that you will contact us immediately.

BUTLER SNOW LLP

By: Matthew S. Tanner

Accepted and Approved:

TOWN OF NEDERLAND, COLORADO

Digitally signed by Jonathan Cain
DN: cn=Jonathan Cain, o=Town of Nederland, ou=Town and Zoning Administrator, email=townadmin@nederlandco.org
Reason: I agree to the terms defined by the placement of my signature on this document
Date: 2025.08.14 16:12:57 -06'00'

By: _____

Title: _____

Date: _____

MST/dlm
Enclosures

EXHIBIT A

BUTLER SNOW LLP
STANDARD BILLING TERMS AND CHARGES FOR EXPENSES
As of January 1, 2025

Butler Snow LLP (the "Firm") will bill clients monthly for legal services, unless another arrangement is agreed to and approved in writing by the Firm and the Client. The Firm typically sends bills for legal services and expenses via the U.S. Postal Service or by e-mail. Electronic billing services may also be used by specific agreement.

It is our goal that our bills are easy to understand, simple, and reflect appropriate charges for the value our services provided. As such, we do not charge for many incidental costs or routine services. We are continually working to ensure that our bills are clear and understandable. Should you have questions about any aspect of your bill, please contact the Firm as soon as possible so that your concerns may be quickly resolved. The chart below spells out the complete details of our expense charges. Our bills are **due upon receipt** unless other arrangements are agreed to in advance.

Any overpayments or duplicate payments the Firm receives that cannot be posted to an outstanding bill ("unapplied payments") will be deposited into the Firm's operating account upon receipt and posted as unapplied cash to the client's account. These unapplied payments will either be applied to a future bill or refunded to the client, whichever is appropriate.

Document Reproduction (Print, Copy & Scan)	
Normal sized documents (up to 11 x 17)	Black & White: $0.20/page Color: $0.35/page **Bates Labeling –** Electronic: $0.03/page Manual: $0.15/page
Oversize documents (size in excess of 11 x 17)	**Charge for each page – no exclusion** Black & white: $1.25/page Color: $4.50/page
Electronic Data Manipulation for reproduction	$75 per hour
Binders	Actual cost of the binders plus $1.00 per comb
Wire Transfers	**Outgoing:** International: **$50/wire** Domestic: **$25/wire**
Data/Audio/Visual Duplication & Reproduction	**CD/DVD:** **$12.00** for each disc **Portable Media Devices**: Priced per data storage size
Electronically Stored Information (Litigation Support Services)	**Data Room**: $1,000.00/room **Data Processing**: $100.00/gb per occurrence **Data Storage:** $10.00/gb per month **Document Review & Hosting**: $25.00/gb per month **Review User License Fees:** $90.00/user per month **Minimum Monthly Fee:** $150.00
Computerized Legal Research	No charge for basic research. $70/search for public records, special treatises, briefs, motions, trial court documents and expert directory databases Research from secondary sources and outside of firm's plan at actual cost Specialized research at actual cost with prior client approval
Electronic retrieval of Court documents	**$0.40 / document**
Fax and International Calls	**$0.50/Page** Non-domestic and conference calls charged at actual cost.
Travel (personal vehicle)	Current Standard Mileage Rate as allowed by the IRS
Messenger Delivery and Service of Subpoenas or Summons	Deliveries 0-25 miles one way - **$30.00;** over 25 miles one way - **$10.00/hour plus mileage;** Service of Subpoenas/Summons - **$35.00 plus delivery**
Overnight Package Delivery	Charged at actual cost per package
Postage	Postage charged at actual cost
Conference Center & Catering	Charges for costs associated with client meetings and events will be passed on to the client at cost, unless agreed upon prior. This excludes basic client meetings without associated food and beverage services or special costs for conference services.

EXHIBIT B
NOTICE TO CLIENTS OF BUTLER SNOW'S RECORD RETENTION & DESTRUCTION POLICY FOR CLIENT FILES

Butler Snow maintains its client files electronically. Ordinarily, we do not keep separate paper files. We will scan documents you or others send to us related to your matter to our electronic file for that matter and will ordinarily retain only the electronic version while your matter is pending. **Unless you instruct us otherwise, once such documents have been scanned to our electronic file, we will destroy all paper documents provided to us.** If you send us original documents that need to be maintained as originals while the matter is pending, we ordinarily will scan those to our client file and return the originals to you for safekeeping. Alternatively, you may request that we maintain such originals while the matter is pending. If we agree to do that, we will make appropriate arrangements to maintain those original documents while the matter is pending.

At all times, records and documents in our possession relating to your representation are subject to Butler Snow's Record Retention and Destruction Policy for Client Files. Compliance with this policy is necessary to fulfill the firm's legal and ethical duties and obligations, and to ensure that information and data relating to you and the legal services we provide are maintained in strict confidence at all times during and after the engagement. All client matter files are subject to these policies and procedures.

At your request, at any time during the representation, you may access or receive copies of any records or documents in our possession relating to the legal services being provided to you, excluding certain firm business or accounting records. We reserve the right to retain originals or copies of any such records of documents as needed during the course of the representation.

Unless you instruct us otherwise, once our work on this matter is completed, we will designate your file as a closed file on our system and will apply our document retention policy then in effect to the materials in your closed files. At that time, we ordinarily will return to you any original documents we have maintained in accordance with the preceding paragraph while the matter was pending. Otherwise, we will retain the closed file materials for our benefit and subject to our own policies and procedures concerning file retention and destruction. Accordingly, if you desire copies of any documents (including correspondence, e-mails, pleadings, contracts, agreements, etc.) related to this matter or generated while it was pending, you should request such copies at the time our work on this matter is completed.

You will be notified and given the opportunity to identify and request copies of such items you would like to have sent to you or someone else designated by you. You will have 30 days from the date our notification is sent to you to advise us of any items you would like to receive. You will be billed for the expense of assimilating, copying and transmitting such records. We reserve the right to retain copies of any such items as we deem appropriate or necessary for our use. Any non-public information, records or documents retained by Butler Snow and its employees will be kept confidential in accordance with applicable rules of professional responsibility.

Any file records and documents or other items not requested within 30 days will become subject to the terms of Butler Snow's Record Retention and Destruction Policy for Client Files and will be subject to final disposition by Butler Snow at its sole discretion. Pursuant to the terms of Butler Snow's Record Retention and Destruction Policy for Client Files, all unnecessary or extraneous items, records or documents may be removed from the file and destroyed. The remainder of the file will be prepared for closing and placed in storage or archived. It will be retained for the period of time established by the policy for files related to this practice area, after which it will be completely destroyed. This includes all records and documents, regardless of format.

While we will use our best efforts to maintain confidentiality and security over all file records and documents placed in storage or archived, to the extent allowed by applicable law, Butler Snow specifically disclaims any responsibility for claimed damages or liability arising from damage or destruction to such records and documents, whether caused by accident; natural disasters such as flood, fire, or wind damage; terrorist attacks; equipment failures; breaches of Butler Snow's network security; or the negligence of third-party providers engaged by our firm to store and retrieve records.